

and egress and it was this location where Plaintiff was injured. Thus, the evidence shows that there is a triable issue of material fact as to whether Defendant affirmatively contributed to Plaintiff's injury by telling Plaintiff where to walk in what was a potentially dangerous location.

Plaintiff has shown that there is a triable issue as to whether the retained control exception applies here and therefore, summary judgment is DENIED.

Objections to Evidence

The Court rules on Plaintiff's objections to evidence as follows:

1. Overruled. Plaintiff is correct Defendant's discovery responses cannot be used by the Defendant to prove a fact. Here, however, Plaintiff is objecting to the "fact" in the separate statement and admits that the fact is undisputed.
2. Overruled. Plaintiff is correct Defendant's discovery responses cannot be used by the Defendant to prove a fact. Here, however, Plaintiff is objecting to the "fact" in the separate statement and admits that the fact is undisputed.
3. Overruled. Plaintiff is correct Defendant's discovery responses cannot be used by the Defendant to prove a fact. Here, however, Plaintiff is objecting to the "fact" in the separate statement and admits that the fact is undisputed.
4. Overruled. Plaintiff objects to a fact in the separate statement that is based on two pieces of evidence, but the basis for the objection addresses only the discovery responses and not the master contract.
5. Overruled. Plaintiff objects to a fact in the separate statement that is based on several pieces of evidence, but the basis for the objection addresses only the discovery responses and not the master contract.

The Court rules on Defendant's objections to evidence as follows:

1. Overruled.
2. Overruled.
3. Overruled.
4. Overruled.
5. Overruled.
6. Overruled.
7. Overruled.
8. Overruled.
9. Overruled.
10. Sustained as to the following: "it would have to have been placed by laborers or carpenters who would either be employed by Swinerton or the concrete/rebar contractor. Otherwise overruled.
11. Overruled.
12. Overruled.
13. Overruled.
14. Overruled.

4. 9:00 AM CASE NUMBER: C23-02039
CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON

***HEARING ON MOTION IN RE: ORDER VACATING ORDER DEEMING MATTERS ADMITTED, AND FOR MOTION FOR ORDER DEEMING RESPONSES TO REQUESTS FOR ADMISSION-SET ONE
FILED BY: HORTON, RICKY DEAN**

TENTATIVE RULING:

On January 22, 2026, defendant Ricky Dean Horton (“Defendant R. Horton”) and defendant Kevin Horton (“Defendant K. Horton”) (collectively, the “Defendants”) both filed motions for an “Order Vacating Order Deeming Matters Admitted; and for Order Deeming Responses to Requests for Admissions, Set One, as Timely and Proper” (the “Motions for Relief from Deemed Admissions”). The Motions for Relief from Deemed Admissions were set for hearing on June 8, 2026.

Background

On November 14, 2025, the Court entered an order granting deeming certain admissions having been made by both Defendants as a result of their having failed to timely respond to requests for admissions propounded by plaintiff Old Republic National Title Insurance Company (“Plaintiff”). See Order entered November 14, 2025 (the “Deemed Admitted Order”). The Deemed Admitted Order, among other things, included an order that “The Court deems RFA’s as against Defendant KEVIN HORTON and Defendant RICKY DEAN HORTON deemed admitted.” *Id.*

The requests for admissions deemed admitted were the Requests for Admission, Set One, (the “RFAs”) propounded on July 24, 2025 on each of the Defendants. See Declaration of Tanner D. Brink filed September 9, 2025, ¶13 and Exhibit A and C (Proof of Service);[FN1] see also Declaration of Ricky Dean Horton filed January 22, 2026 (the “Defendant R. Horton Supporting Declaration”), ¶12 and Declaration of Kevin Horton filed January 22, 2026 (the “Defendant K. Horton Supporting Declaration”), ¶12 (collectively referred to as the “Supporting Declarations”).

FN1: Two substantially similar declarations as to the RFAs served on each of the Defendants were filed the same date.

Both Supporting Declarations make reference to “initial responses” to the RFAs that were served “via email on or about August 23, 2025” wherein the Defendants asserted their “Fifth Amendment right to not be a witness against [themselves] to the requests.” Supporting Declarations, ¶13. They assert that they “mistakenly believed” this right applied to civil discovery. *Id.*

Defendants then describe the motion having been granted at the hearing October 22, 2025 and their representation during that hearing that Defendants would file their “answers” to the RFAs. Supporting Declarations, ¶¶4-5. Defendants state that, thereafter, they responded on October 24, 2025 to the RFAs with “complete, substantive responses.” *Id.* at ¶15 and **Exhibit A** thereto (the “October 24, 2025 Responses to the RFAs”).

Defendants now seek relief from the Deemed Admitted Order.

Pleadings styled as a “Supplemental Declaration” were filed by both Defendants on April 22, 2026 (the “Supplemental Declarations”). However, those documents are not proper declarations, as they contain substantial argument well beyond merely supplementing the prior declarations. The Supplemental Declarations are STRICKEN and have been disregarded by the Court (as well as the later “Notice of Lodgment” filed April 22, 2026). Defendants are admonished that these sorts of pleadings—purported declarations intermingling asserted factual statements under oath with arguments and legal citations—are improper.

Opposition papers were filed on May 26, 2026. Reply papers were filed May 29, 2026.

Analysis

There are several fundamental problems with Defendants' arguments that they have now cured the failure to respond and their belated RFAs responses should somehow be adequate for the Court to vacate the Deemed Admitted Order.

First, the October 24, 2025 Responses to the RFAs were not in proper form so as to be substantially compliant with the requirements of the Civil Discovery Act. While some RFAs were admitted or denied, the responses to multiple others included the statements such as "I don't recall," "[w]ithout knowledge" and other improper commentary ("Refer to the reconveyance?"). See October 24, 2025 Responses to the RFAs, Supporting Declarations, **Exhibit A**. Such responses are not sufficiently code compliant. See Code Civ. Proc. § 2033.220. Even if read to be intended to assert a lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, the Code expressly requires a responding to "state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." *Id.*

Second, even if the October 24, 2025 Responses to the RFAs were substantially compliant, they came too late, days after the hearing. A responding party's service, **before the hearing** on a "deemed admitted" motion, of substantially compliant responses, defeats a propounding party's attempt to have the requests for admissions deemed admitted. Code Civ. Proc. § 2033.280(c); *St. Mary v. Superior Court*, *supra*, 223 Cal.App.4th at 776; see also CJER, *California Judges Benchbook: Civil Proceedings - Discovery* (2024) ("CJER Civ. Proc. Discovery"), § 21.22. Defendants' responses were not served "before the hearing on the motion." Code Civ. Proc. § 2033.280(c).

Of course, the Court may, upon motion, permit a party against whom a deemed admitted was made to withdraw or amend such deemed admissions. *Wilcox v. Birtwhistle* (1999), 21 Cal. 4th 973, 980 (the Civil Discovery Act permits the withdrawal or amendment of deemed admissions); see Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025), § 8:1386b ("Weil & Brown"); Code Civ. Proc. § 2033.300.

Even construing Defendants' motions as seeking such relief, the Court concludes that such relief is unwarranted.

To grant such relief, the Court must conclude that the admission **(1) was the result of mistake, inadvertence, or excusable neglect, and (2) that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits**. Code Civ. Proc. § 2033.300; see Weil & Brown § 8:1386.1; see *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1418.

Even if the Court accepts the premise that the failure to timely respond was the result of what Defendant now characterize as a mistaken belief as to the applicable law and the operation of the discovery statutes, the question becomes whether such mistake was excusable or not. The Court concludes that it was not.

In the similar context of relief under Code of Civil Procedure section 473, neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

Although it is well settled that an honest mistake of law may justify relief under Code of Civil Procedure

section 473, there appears to be no exact test for determining the issue under the caselaw. However, the caselaw generally recognizes that the determining factors are the reasonableness of the misconception and the justifiability of lack of determination of the correct law. *Fidelity Federal Sav. & Loan Asso. v. Long* (1959) 175 Cal.App.2d 149, 154 (“*Fidelity Federal*”); see *Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1111 (“The determining factors are the reasonableness of the misconception and the justifiability of lack of determination of the correct law.”). Normally relief is denied where the alleged mistake of law is the result of professional incompetence based upon erroneous advice, general ignorance of the law or lack of knowledge of the rules, or unjustifiable negligence in the discovery or research of the law, laxness or indifference. *Fidelity Federal, supra*.

The Court is not inclined to conclude an excusable mistake ought to extend to the circumstances one where a party vigorously advances an objectively unreasonable legal position and then turns around and says it should be relieved from the consequences of advocating that position because that party was “mistaken” as to their legal position.

The parties now seeking relief, Defendants, had advanced legal positions based on far-fetched and objectively unreasonable positions such as that none of the discovery statutes even apply to the Defendants:

The corporate government DBA STATE OF CALIFORNIA operates under a completely separate and distinct jurisdiction as compared to the jurisdiction of the common laws of nature and nature's God.

All judicial actors are hereby notified that the statutes and codes of government are not applicable to me if they infringe, in any way, upon my unalienable and constitutionally protected rights.

Kevin Horton’s Opposition filed October 9, 2025, pp. 2 and 4. Defendants continued to advocate this position even in their “reply” to the moving party’s reply briefing. See e.g. Reply Brief filed October 20, 2025.

The Court finds that the supposed mistaken belief on which Defendant rely reflects unjustifiable negligence in the discovery or research of the law and/or indifference to the applicable law.

Given Defendants’ failure to demonstrate mistake, inadvertence, or excusable neglect, the Court need not address the issue of whether the party who obtained the admission will not be substantially prejudiced.

Disposition

The Court further finds and orders as follows:

1. The Motions for Relief from Deemed Admissions are DENIED.
2. The Court will issue the order after hearing.

5. 9:00 AM CASE NUMBER: C23-02039
CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON
HEARING IN RE: ORDER VACATING ORDER DEEMING MATTERS ADMITTED, AND FOR ORDER
DEEMING RESPONSES TO REQUESTS FOR ADMISSION-SET ONE
FILED BY:
TENTATIVE RULING:

See LINE 4 above.

6. 9:00 AM CASE NUMBER: C24-00008
CASE NAME: KIM HUNTER-REAY VS. EDWARD KRAVITZ
*HEARING ON MOTION IN RE: TERMINATING SANCTIONS
FILED BY: KRAVITZ, EDWARD
TENTATIVE RULING:

Defendants Carol Kravitz and Edward Kravitz (“Defendants”) filed a Motion for Terminating Sanctions on January 23, 2026 (the “Motion for Sanctions”). The Motion for Sanctions was set for hearing on June 8, 2026. The motion was duly served. The motion is unopposed.

Background

Plaintiff’s Motion for Sanctions seeks the imposition of a terminating sanction against plaintiff Kim Hunter-Reay (“Plaintiff”) because Defendants contend that Plaintiff has defied the Court’s prior discovery orders. Alternatively, Plaintiff seeks “other such sanctions or orders” as may be “appropriate.”

The Motion for Sanctions is supported by the Declaration of Melissa Grant Zamora. See Declaration of Melissa Grant Zamora filed January 23, 2026 as part of the Motion for Sanctions (the “Supporting Declaration”).

A Notice of Non-Opposition was filed on June 1, 2026 by Defendants.

Analysis

Defendants make reference to a prior order issued by the Court compelling Plaintiff to provide further responses to certain discovery propounded by Plaintiff. See Order dated October 15, 2025 (the “October 15th Order”). Among other things, Plaintiff was ordered to provide responses to the subject discovery (the “Discovery Responses”):

IT IS HEREBY ORDERED that Defendant’s unopposed motion to compel is granted.
Plaintiff shall serve code compliant verified responses to form interrogatories and special
interrogatories by September 22, 2025.

Plaintiff shall also serve code compliant verified responses to the request for production of
documents by September 22, 2025.

See October 15th Order, p. 1. \$322.84 in monetary sanctions (the “Sanctions”) was also awarded and ordered to be paid by September 22, 2025.[FN1] *Id.*

Despite notice of the October 15th Order, Plaintiff failed to provide any of the Discovery Responses as